

Ashok Kumar Gupta v. State of U.P.

Allahabad High Court · Division Bench · 25 January 2019 · Writ-C No. 2892 of 2019 · **Writ disposed; petitioner relegated to clause 6.5 representation; recovery kept in abeyance pending Executive Engineer's decision; merits not adjudicated.**

HEADNOTE

A writ seeking quashing of an electricity demand notice and recovery citation, where the consumer's case is a disputed bill, is disposed of by relegating the consumer to representation under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer is directed to hear and decide the representation in accordance with law; recovery remains in abeyance pending that decision. The Court does not decide the bill on merits.

FACTUAL SUMMARY

Ashok Kumar Gupta sought a writ quashing a demand notice dated 23 February 2018 and a recovery citation dated 12 November 2018 for Rs 3,50,000 towards electricity dues of Purvanchal Vidyut Vitran Nigam Limited, Electricity Distribution Division, Phaphamau, Allahabad. Counsel submitted that the matter was a disputed bill. The Division Bench heard the petitioner, counsel for the distribution licensee, and the State.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-representation

HOLDING

Where a consumer challenges an electricity demand notice and recovery citation as a disputed bill, the High Court will not quash the demand on merits and will relegate the consumer to the representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who is to hear and decide the representation in accordance with law within the time fixed; recovery remains in abeyance pending that decision. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking quashing of an electricity demand notice and recovery citation, where the consumer's case is a disputed bill, is disposed of by relegating the consumer to representation under clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 23.02.2018 AND RECOVERY CITATION DATED 12.11.2018 FOR RS 3,50,000 ELECTRICITY DUES

The Court expressly recorded that it had not adjudicated the petitioner's claim on merit. ¶ 1